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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 09.10.2026

PRESENT

THE HONOURABLE MR.JUSTICE K.MURALI SHANKAR

CRL.O.P(MD). No.23054 of 2026

Mayaganapathy :Petitioner/Petitioner

Vs

State of Tamil Nadu
represented by
The Inspector of Police,
Thalamuthunagar Police Station,
Thoothukudi District.
(Crime No.425 of 2026) : Respondent/Respondent

PRAYER :- Petition filed under Section 482 Cr.P.C., to call for the records pertaining to the order passed by the learned Additional District Judge, Principal Special Court for EC and NDPS Act cases, Madurai in Crl.M.P.(MD)No.2170 of 2026, dated 16.09.2026 and set aside the same by modifying the condition.

For Petitioner : Mr.S.Veerapandiselvaraj

For Respondent : Mr.N.Balasubramanian
Counsel for State of TN(Crl.side)

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ORDER

This petition has been filed seeking to set aside the order passed in Crl.M.P.No.2170 of 2026, dated 16.09.2026, on the file of the Principal Special Court for EC & NDPS Act cases, Madurai in dismissing the petition seeking modification of the condition imposed.

2. Heard the learned Counsel for the petitioner and the learned Counsel for State of TN (Crl.Side) and perused the materials available on record.

3. It is not in dispute that the learned Sessions Judge, while granting bail to the petitioner in Crl.M.P.No.1896 of 2026, dated 29.07.2026 imposed a condition, directing the petitioner to produce two sureties, out of which one is blood surety.

4. The learned Counsel for the petitioner would submit that his parents are no more, that the petitioner's brother is not on talking terms and except his brother, he is not having any other blood relative for furnishing the sureties.

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5. As rightly pointed out by the learned Counsel for the petitioner, in the impugned order itself, the learned Sessions Judge has observed the submission made by the learned Special Public Prosecutor therein that the accused's elder brother gave a statement that the petitioner/accused had been continuously causing harassment and trouble to their family members.

6. The learned Counsel for State of TN (Crl.side) would submit that the petitioner may be directed to furnish a surety of his relative or local surety.

7. Considering the above facts and circumstances and also taking note the submission made by both sides, this Court is inclined to modify the condition imposed in Crl.M.P.No.2170 of 2026, dated 16.09.2026, on the file of the Principal Special Court for EC & NDPS Act cases, Madurai. Accordingly, the petitioner is directed to produce two sureties out of which one surety must be local surety.

8. In the result, the Criminal Original Petition is ordered and the impugned order is set aside and the condition is modified to the effect that

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the petitioner is directed to produce two sureties out of which one surety must be local surety and the other conditions imposed in Crl.M.P.No.2170 of 2026, dated 16.09.2026, on the file of the Principal Special Court for EC & NDPS Act cases, Madurai, shall stand unaltered.

(K M S J)

09.10.2026

NCC : Yes/No
Index : Yes/No
Internet :Yes/No

Note: Issue order copy on 09.10.2026.

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To :

1. The Principal Special Court for EC & NDPS Act cases, Madurai.

2. The Inspector of Police,
Thalamuthunagar Police Station,
Thoothukudi District.

3.The Additional Public Prosecutor,
Madurai Bench of Madras High Court,
Madurai.

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K.MURALI SHANKAR, J.

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ORDER in

CRL.O.P(MD). No.23054 of 2026

Dated : 09.10.2026

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